

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JOHN DANIEL,

Plaintiff,

- against -

THE CITY OF NEW YORK, and POLICE
OFFICER JUNG,

Defendants.
-----X

Index No.

Plaintiff designates
New York County as
the place of trial.

The basis of the
venue is the
location of occurrence.

S U M M O N S

Plaintiff resides at:
550 West 144th Street (32)
New York, NY 10037

County of New York

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
February 18, 2015

SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff

JOHN DANIEL

Office & P.O. Address
11 Park Place, 10th Floor
New York, New York 10007
(212) 227-8865

The City of New York, 100 Church Street, New York, N.Y. 10007
POLICE OFFICER JUNG, c/o NYPD - 30TH Precinct, 451 W 151ST New York,
N.Y. 10031

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JOHN DANIEL,

Index No.

Plaintiff,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK and POLICE OFFICER JUNG

Defendants.
-----X

Plaintiff, complaining of the defendants, by his attorneys, **SCHMELKIN ASSOCIATES, P.C.**, hereby sets forth and alleges, upon information and belief, as follows:

PRELIMINARY STATEMENT

1. That, at all times hereinafter mentioned, and on June 7, 2014, the plaintiff, **JOHN DANIEL**, was and still is a resident of the County of New York, City and State of New York.

2. That, at all times hereinafter mentioned, and on June 7, 2014, the defendant, **THE CITY OF NEW YORK**, (hereinafter referred to as "**THE CITY**") was and still is a domestic municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

3. That, at all times hereinafter mentioned, and on June 7, 2014, defendant, **POLICE OFFICER JUNG**, (hereinafter referred to as "**JUNG**"), was and still is a resident of the City and State of New York.

4. That, the plaintiff, **JOHN DANIEL**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY**; plaintiff's Notice

of Claim was served on August 18, 2014, within ninety (90) days of the date that the within cause of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, the plaintiff, **JOHN DANIEL**, testified at an oral examination pursuant to the General Municipal Law on November 17, 2014; and, that this action is being commenced herewith within one (1) year and ninety (90) days of the date that the within cause of action having been caused to accrue.

5. That, on June 7, 2014, the plaintiff, **JOHN DANIEL** was in front of 550 West 151st Street, in the County of New York, City and State of New York.

6. That the plaintiff, **JOHN DANIEL**, was going to a party at or about the aforementioned location.

7. That the plaintiff, **JOHN DANIEL**, was in a cab and disembarked at the aforementioned location in an attempt to go to a party.

8. That the plaintiff, **JOHN DANIEL** thereafter saw a police car approach him.

9. That police officers, and/or other agents, servants, and/or employees, rushed towards the plaintiff, **JOHN DANIEL** .

10. That the aforementioned police officers, agents, servants, and/or employees of the defendant and/or defendants, had tackled the plaintiff **JOHN DANIEL**.

11. That the aforementioned police officers, and/or agents, servants, and/or employees of the defendant and/or

defendants, threw the plaintiff, **JOHN DANIEL** to the ground.

12. That the plaintiff, **JOHN DANIEL** offered to show the officers, agents, servants, and/or employees of the defendant and/or defendants, the plaintiff **JOHN DANIEL** 's identification.

13. That the plaintiff **JOHN DANIEL** was taken to the 30th Precinct by the aforementioned police officers, agents, servants, and/or employees of the defendant and/or defendants, yet never told as to what charges were being filed against him.

14. That the excessive physical force used against the plaintiff, **JOHN DANIEL** consisted of the officers, and/or other agents, servants, and/or employees of the defendant and/or defendants pressing against the plaintiff, **JOHN DANIEL** 's lower back; in tossing the plaintiff **JOHN DANIEL** to the ground; as well as placing tight grips on the plaintiff **JOHN DANIEL** 's arms.

15. That the plaintiff **JOHN DANIEL** was given a desk appearance ticket at the 30th Precinct and had to appear in Court.

16. That the plaintiff, **JOHN DANIEL** returned to Criminal Court as a result of the occurrence at a later date.

17. The charge against the plaintiff, **JOHN DANIEL**, of disorderly conduct was ultimately dismissed on July 25, 2014.

AS AND FOR A FIRST CAUSE OF ACTION

18. That, the plaintiff, **JOHN DANIEL**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 17 with the same force and effect as if

hereinafter more fully set forth at length herein.

19. That, on June 7, 2014 the plaintiff, **JOHN DANIEL**, was assaulted/battered by the defendant, and/or defendants by and through their agents, servants and/or employees.

20. That, the plaintiff, **JOHN DANIEL**, was assaulted/battered without justification and without cause and without excuse.

21. That, the assault/battery took place in the front of 550 West 151st Street, in the County of New York, City and State of New York, and other locations wherein the plaintiff, **JOHN DANIEL** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

22. That, at all times hereinafter mentioned and on June 7, 2014, and for sometime prior thereto, defendant, **JUNG**, was a New York City police officer, and/or agent servant and/or employee of the defendant, **THE CITY**, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

23. That, the aforementioned assault and battery of the plaintiff, **JOHN DANIEL**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of their employment with the defendant **THE CITY**.

24. That, by reason of the foregoing, the plaintiff, **JOHN DANIEL**, was injured; was rendered sick, sore, lame and

disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

25. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

26. That, by reason of the foregoing, the plaintiff, **JOHN DANIEL**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION

27. That, the plaintiff, **JOHN DANIEL**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 26 with the same force and effect as if hereinafter more fully set forth at length herein.

28. That, all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant, **THE CITY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

29. That the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE CITY**.

30. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **JUNG**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or employees of the defendant, **THE CITY**.

31. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **JUNG**, who was employed by the defendant, **THE CITY**.

32. That, by reason of the foregoing, the plaintiff, **JOHN DANIEL**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

33. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

34. That, by reason of the foregoing, the plaintiff, **JOHN DANIEL**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION

35. That the plaintiff, **JOHN DANIEL**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 34 with the same force and effect as if hereinafter more fully set forth at length herein.

36. That, on June 7, 2014, the plaintiff, **JOHN DANIEL**, was caused to be falsely arrested and falsely imprisoned without probable cause.

37. That, the plaintiff, **JOHN DANIEL**, was arrested without an arrest warrant.

38. That, the false arrest/false imprisonment took place in front of 550 West 151st Street, in the County of New York, City and State of New York, and other locations and wherein the plaintiff, **JOHN DANIEL** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

39. That, the aforementioned false arrest and false imprisonment of the plaintiff, **JOHN DANIEL**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**.

40. That, the aforementioned false arrest and false imprisonment of the plaintiff, **JOHN DANIEL**, was carried out by defendant, **JUNG**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of his employment with the defendant, **THE CITY**.

41. That, by reason of the foregoing, the plaintiff, **JOHN DANIEL**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

42. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

43. That, by reason of the foregoing, the plaintiff, **JOHN DANIEL**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FOURTH CAUSE OF ACTION

44. The plaintiff, **JOHN DANIEL**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 43 with the same force and effect as if

hereinafter more fully set forth at length herein.

45. That, the aforementioned false arrest and false imprisonment of the plaintiff, **JOHN DANIEL**, was caused due to a malicious prosecution of the plaintiff, **JOHN DANIEL**, without cause, without reasonable cause, and without color of the law.

46. That, the arresting and investigating police, who were police officers, and/or other agents, servants or were other employees of the defendant, **THE CITY**, failed to make a proper and through investigation of the facts, failed to make proper inquiries resulting in the false arrest and false imprisonment of the plaintiff, **JOHN DANIEL**, was maliciously prosecuted without probable cause, without reasonable cause, and without color of the law.

47. That, upon information and belief, the criminal charge against the plaintiff, **JOHN DANIEL**, of disorderly conduct was ultimately dismissed on July 25, 2014, in the County of New York, City and State of New York.

48. That, by reason of the foregoing, the plaintiff, **JOHN DANIEL**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

49. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in

reckless disregard for the safety of others.

50. That, by reason of the foregoing, the plaintiff, **JOHN DANIEL**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FIFTH CAUSE OF ACTION

51. The plaintiff, **JOHN DANIEL**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 50, with the same force and effect as if hereinafter more fully set forth at length herein.

52. That the plaintiff, **JOHN DANIEL** did not commit any illegal act, nor did the individually named defendant have reason to believe he committed an unlawful act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, excessive force was used against him; maliciously prosecuted and deprived of his constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

53. That at all times hereinafter mentioned, the defendant, **JUNG**, was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

54. Defendant, **JUNG**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendants knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff, **JOHN DANIEL**, or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

55. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff, **JOHN DANIEL** of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York: The right of plaintiff, **JOHN DANIEL** to be secure in his person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff, **JOHN DANIEL**, to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, **JOHN DANIEL**, not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

56. That the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendant, **JUNG**, while acting under color of state law and within the scope of his employ.

57. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting individuals without probable cause.

58. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting minorities without probable cause.

59. That the deprivation of plaintiff, **JOHN DANIEL** Constitutional Rights was the result of the defendant, **THE CITY's** custom and/or policy of failing to discipline officers for arresting individuals without probable cause.

60. That the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, **THE CITY**.

61. That the detaining of plaintiff, **JOHN DANIEL** without probable cause or justification was the result of customs and/or policies adopted by the defendant, **THE CITY**.

62. That the deprivation of plaintiff, **JOHN DANIEL's** Constitutional Rights was the result of the defendant, **JUNG's** arrest of the plaintiff **JOHN DANIEL** without probable cause.

63. That the deprivation of plaintiff, **JOHN DANIEL's** Constitutional Rights was a result of the defendant, **THE CITY's**

custom and policy in failing to discipline officers for the use of excessive force.

64. That the deprivation of plaintiff, **JOHN DANIEL's** Constitutional Rights was the result of **JUNG's** use of excessive force.

65. That the customs and/or policies adopted by the defendant, **THE CITY** exhibited a deliberate indifference to the Constitutional rights of plaintiff, **JOHN DANIEL.**

66. That by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the plaintiff's false arrest, false imprisonment, assault and battery, malicious prosecution due to the negligence of the defendant and/or defendants, in the negligent hiring, negligent retention, and negligent training of its various employees and/or police officers, the plaintiff, **JOHN DANIEL** was caused to have his civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth under 42 U.S.C. Section 1983.

67. That, by reason of the foregoing, the plaintiff **JOHN DANIEL** was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief, his injuries are permanent in nature and effect.

68. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

69. That, by reason of the foregoing, the plaintiff, **JOHN DANIEL**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

WHEREFORE, plaintiff, **JOHN DANIEL**, demands judgment against the defendants, on the First, Second, Third, Fourth and Fifth causes of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York; together with interest, as well as the costs, disbursements and legal fees pursuant to 42 U.S.C. Section 1988, of these causes of action.

Dated: New York, New York
February 18, 2015

Yours, etc.

SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff,
JOHN DANIEL
Office & P.O. Address
11 Park Place, 10th Floor
New York, New York 10007
(212) 227-8865

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
) .SS:
COUNTY OF NEW YORK)

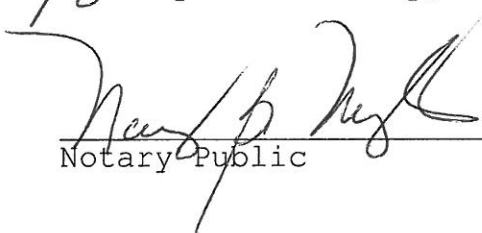
JOHN DANIEL, being duly sworn deposes and says:

I am the plaintiff in this action. I have read the foregoing COMPLAINT and know its contents and the same are true to my knowledge and belief except as to matters therein stated to be alleged on information and belief and as to those matters I believe it to be true.



JOHN DANIEL

Sworn to before me this
18 day of February, 2015



Notary Public

NANCY BRODY NAPLES
NOTARY PUBLIC STATE OF NEW YORK
01NA4692253
Qualified in Richmond County
Commission Expires June 30, 2015

Index No.

Year 20

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

JOHN DANIEL,

Plaintiff,

-against-

THE CITY OF NEW YORK and POLICE OFFICER JUNG,
Defendants.

SUMMONS AND VERIFIED COMPLAINT

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

John Daniel

Office and Post Office Address, Telephone

11 PARK PLACE, 10TH FLOOR

NEW YORK, N.Y. 10007

TEL: (212) 227-8865

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated: February 18, 2015

Signature

JOEL SCHMELKIN, ESQ.

Print Signer's Name

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

Check Applicable Box

☐

NOTICE OF
ENTRY

that the within is a (certified) true copy of a
entered in the office of the clerk of the within-named Court on

20

☐

NOTICE OF
SETTLEMENT

that an Order of which the within is a true copy will be presented for settlement to the
Hon. , one of the judges of the within-named Court,
at
on 20 , at M.

Dated:

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

Office and Post Office Address, Telephone

11 PARK PLACE, 10TH FLOOR

To: